

Where a person is guilty of an offence involving the destruction of, injure or damage to vegetation, the court dealing with the offence may, in addition to or in substitution for any pecuniary penalty imposed or liable to be imposed, direct that person to:

- (a) Repair or remedially prune damaged trees;
- (b) Plant new trees and vegetation and maintain those trees and vegetation to a mature growth/or minimum height of five (5) metres; and
- (c) Provide security for the performance of any obligation imposed under paragraph (a) & (b) above.

Note: *injure a tree means but is not limited to:* poisoning; spilling or washing off toxic chemicals; applying herbicides to a tree or within its Tree Protection Zone; damage to tree roots from stockpiling materials, soil compaction, filling, excavation or altering soil levels within its Tree Protection Zone; wounding to tree trunks or the breaking or tearing of roots or branches; wounding to trunks or branches from fixing objects using nails, wires, staples or similar fastening materials e.g. attaching signs, swings, platforms or cubby houses.